

Petitioner v. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. & Ors.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 9 September 2025 · Writ-C No. 8645 of 2025 · **Disposed of; petitioner to apply under 4.4(a)(i) read with Annexure 4.2; licensee to consider within two weeks.**

HEADNOTE

A tenant in possession seeking mandamus for a new electricity connection without the landlord's NOC was not granted the connection on the writ. The Court disposed of the petition directing the petitioner to move an application in accordance with paragraph 4.4(a)(i) read with Annexure 4.2 of the Electricity Supply Code within two weeks, and directed the licensee to consider it and pass appropriate orders, including inspection if required, within two weeks thereafter.

FACTUAL SUMMARY

The petitioner, a tenant in possession of Flat No. 301, A-Square Apartment, Golaganj, Lucknow, applied for a new electricity connection (application No. J5201061601 dated 14.08.2025) and sought mandamus directing Madhyanchal Vidyut Vitran Nigam Ltd. to grant the connection without a landlord NOC. The licensee said the application was not in accordance with paragraph 4.4(a)(i) of the Electricity Supply Code, so a connection could not be given, and the petitioner was at liberty to file a fresh compliant application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

new connection without owner NOC

HOLDING

Mandamus to grant a new connection without the landlord's NOC was refused. The tenant-petitioner was directed to move an appropriate application in accordance with paragraph 4.4(a)(i) read with Annexure 4.2 of the Electricity Supply Code within two weeks; if so moved, the licensee shall consider it and pass appropriate orders within two weeks thereafter, in accordance with the rules, including inspection of the premises if required. ¶ 4-5

PRINCIPLE TAGS

owner-consent-mandatory-for-new-connection-clause-4.4

A tenant in possession seeking mandamus for a new electricity connection without the landlord's NOC was not granted the connection on the writ.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER-TENANT IS ENTITLED TO A NEW CONNECTION WITHOUT THE LANDLORD'S NOC ON THE EXISTING APPLICATION

Writ disposed of without granting or refusing the connection; merits left to the licensee on a fresh 4.4(a)(i) / Annexure 4.2 application. ¶ 5